

Abdul Ali alias Abdul Navi v. Managing Director, Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 15 July 2022 · WRIT-C No. 17815 of 2022 · **Writ disposed; petitioner relegated to clause 6.5 objection; coercive action stayed eight weeks.**

HEADNOTE

A writ seeking to quash PVVNL's demand notice dated 22 October 2021 was disposed without examining merits. The petitioner was given liberty to file an objection under para 6.5 of the U.P. Electricity Supply Code, 2005 before respondent no. 2 within four weeks; if filed, it was to be decided after hearing, preferably within four weeks. Coercive action on the demand was stayed for eight weeks or until disposal of the objection, whichever earlier.

FACTUAL SUMMARY

Abdul Ali challenged a notice dated 22 October 2021 issued by an officer of Paschimanchal Vidyut Vitran Nigam Limited, seeking certiorari to quash it and a mandamus restraining coercive recovery. The distribution company's counsel, on instructions, stated that the petitioner could file an objection to the demand, which would be decided in a time-bound manner. The High Court recorded that statement and disposed of the writ without examining the correctness of the notice.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

objection to demand as alternate remedy

HOLDING

Where a consumer challenges a distribution-company demand notice in writ, the High Court may, without examining merits, relegate the consumer to the statutory objection under para 6.5 of the U.P. Electricity Supply Code, 2005, direct a time-bound decision after hearing, and stay coercive recovery for a short window pending that objection. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against PVVNL's 22 October 2021 demand notice was disposed without merits, with liberty to object under para 6.5 of the 2005 Code and a short stay of coercive action. ¶ 1

clause-6.5-statutory-remedy-disputed-bill Counsel's statement that an objection to the impugned demand would be decided in a time-bound manner was accepted as the appropriate statutory course under para 6.5. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE IMPUGNED DEMAND NOTICE DATED 22.10.2021

The Court expressly declined to examine merits and left the objection to respondent no. 2 under para 6.5. ¶ 1